



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

June 14, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11232
(ELEVENTH REVISION)

EXPIRATION DATE: 2027-05-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Alaska Department of Transportation and Public Facilities
Ketchikan, AK
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of Acetylene, dissolved, contained in a DOT specification cylinder secured on a state-owned maintenance motor vehicle while stowed on a protected vehicle deck on board a passenger ferry vessel. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101, column (10A) for the entry "Acetylene, dissolved" in that other than "on deck only" stowage is authorized; the marking requirements in § 172.203(a) and § 172.301(c).

Tracking Number: 2023054693

5. BASIS: This special permit is based on the application of the State of Alaska DOT dated May 15, 2023, and submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Acetylene, dissolved	2.1	UN1001	n/a

7. SAFETY CONTROL MEASURES:

PACKAGING: Prescribed packaging is a single DOT Specification 8 or 8AL cylinder having a water capacity of not more than 100 pounds.

8. SPECIAL PROVISIONS: The marking requirements of § 172.203(a) and § 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Passenger ferry vessel.

10. MODAL REQUIREMENTS:

a. Carriage of Acetylene, dissolved contained in a single DOT Specification 8 or 8AL cylinder of not more than 100 pounds water capacity onboard a passenger ferry vessel carrying any number of passengers is subject to the following conditions:

(1) A current copy of this special permit must be carried onboard each ferry vessel used to transport Acetylene, dissolved, under the terms of this special permit.

(2) The acetylene cylinder must have its valve protection cap in place and be stowed upright, secured in a permanent rack on the maintenance vehicle.

(3) The maintenance vehicle containing the acetylene cylinder must be the last vehicle loaded and the first vehicle off-loaded.

(4) Arrangements must be made to provide for rapid response to a casualty or fire that involves or could involve the maintenance vehicle containing the acetylene cylinder. The maintenance vehicle containing the acetylene cylinder must be stowed away from any external heat source and in the vicinity of a cargo door so that the acetylene or vehicle may be jettisoned in the event of an emergency.

In addition, if weather and other conditions permit, a charged fire hose must be laid out in the vicinity of the maintenance vehicle.

(5) An hourly inspection of the maintenance vehicle and the acetylene cylinder must be made by the watchman.

(6) Passengers may not remain in the area of the maintenance vehicle containing the acetylene cylinder during the voyage.

b. Compliance with the above provisions and any additional provisions must be to the satisfaction of the cognizant Coast Guard Captain of the Port.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Jephthah Nti